

ANNEX.

DOCUMENTS SUBMITTED TO THE COURT.

I.—DOCUMENTS FILED ON BEHALF OF THE CZECHOSLOVAK GOVERNMENT.

A.—*In the written proceedings :*

- I. Ordinance of the Minister with full powers for the administration of Slovakia, No. 6525/1919 pres., dated August 11th, 1919.
- II. Minutes of the public hearing held at The Hague on December 15th and 16th, 1931.
- III. Judgment rendered at Lugano by the Hungaro-Czechoslovak Mixed Arbitral Tribunal on April 15th, 1932.
- IV. Minutes of the public hearing held at Paris on September 28th, 29th and 30th, and October 1st, 1932.
- V. Letter from the Agent-General for the Czechoslovak Government to the President of the Hungaro-Czechoslovak Mixed Arbitral Tribunal, dated September 26th, 1932.
- VI. Judgment rendered by the Hungaro-Czechoslovak Mixed Arbitral Tribunal on September 28th, 1932.
- VII. *Idem*, on October 10th, 1932.
- VIII. Minutes of the public hearing held at The Hague on January 31st and February 1st, 1933.
- IX. Oral statement made by the Agent-General for the Czechoslovak Government on December 15th, 1931.
- X. *Idem*, on September 29th, 1932.
- X (a). *Idem*, on September 30th, 1932.
- XI. *Idem*, on February 1st, 1933.
- XII. Extracts from documents in connection with the examination of the legal nature of the foundations and funds administered under the supervision of the Royal Hungarian Ministry of Public Education and Worship.
- XIII. Note XXIII (Annex 16) submitted by the Hungarian Delegation to the Peace Conference (see the Hungarian peace negotiations—Record of the work of the Hungarian Peace Delegation at Neuilly-sur-Seine, from January to March, 1920—Volume II, published by the Hungarian Ministry for Foreign Affairs, pp. 142 *et seq.*).
- XIV. Note XXXVII (Annex 4) submitted by the same Delegation to the Peace Conference (*l. c.*, p. 455).
- XV. Extract from note XXXVII (Annex 6) submitted by the same Hungarian Delegation to the Peace Conference concerning the observations of the Hungarian Government upon the provisions of Articles 249 and 250 of the conditions of peace (*l. c.*, pp. 459 and 460).
- XVI. Reply of the Allied and Associated Powers to the observations of the Hungarian Delegation upon the conditions of peace in regard to the provisions of Articles 239, 240, 249 and 250 of the Peace Treaty of Trianon (*l. c.*, pp. 569 and 571).
- XVII. Report by Sir Austen Chamberlain to the Council of the League of Nations (Doc. C./47th Session, P.-V. 1 [I]).

- XVIII. Rules of Procedure of the Hungaro-Czechoslovak Mixed Arbitral Tribunal, dated November 6th, 1922.
 (a) Minute drawn up at Zurich on November 6th, 1924.
 (b) *Idem*.
 (c) *Idem*, on January 9th, 1925.
 (d) Minute drawn up at The Hague on August 11th, 1925.
 (e) Modifications to the Rules of Procedure adopted at Neuchâtel on July 9th, 1931.
- XIX. Objection lodged by the Czechoslovak Republic on November 20th, 1926.
- XX. Extracts from the land-registers concerning the estates in issue belonging by right of ownership to the University Fund:
1. In the jurisdiction of the Court of Šala nad Váhom:
 - (a) Sheet No. 1 of the land-register for Dlhá nad Váhom.
 - (b) Sheet No. 1 of the land-register for Králová nad Váhom.
 - (c) Sheet No. 1231 of the land-register for Šala nad Váhom.
 - (d) Sheet No. 63 of the land-register for Pered.
 2. In the jurisdiction of the Court of Galánta:
 - Sheet No. 2 of the land-register for Králov Brod.
 3. In the jurisdiction of the Court of Turč. Sv. Martin:
 - (a) The land-register for Ondrášová, No. 13.
 - (b) *Idem*, No. 70.
 - (c) *Idem*, for Lazany, No. 65.
 - (d) *Idem*, No. 123.
 - (e) *Idem*, for Sočovce, No. 13.
 - (f) *Idem*, for Moškovce, No. 36.
 (Nos. 10 and 16 combined.)
 - (g) *Idem*, for Svätý Jur, No. 18.
 - (h) *Idem*, for Kláštor pod Zniovom, No. 200.
 - (ch) *Idem*, No. 202.
 - (i) *Idem*, No. 203.
 - (j) *Idem*, for Ležiachovo, No. 19.
 - (k) *Idem*, No. 74.
 - (l) *Idem*, for Valča, No. 50.
 - (m) *Idem*, for Necpaly, No. 45.
 - (n) *Idem*, No. 328.
 - (o) *Idem*, for Slovany, No. 104.
 - (p) *Idem*, No. 106.
 - (q) *Idem*, for Polerieka, No. 16.
 - (r) *Idem*, for Vricko, No. 53.
- XXI. Application of the legal representative of the Royal Board of Public Foundations regarding the rectification of the name of the corporate body, together with his power of attorney and the relevant decision of the court.
- XXII. Extracts from the contracts concluded between the University Fund, or the public foundation-estates, as a corporate body, and various private persons in respect of the estates in issue:
1. The contract concluded on January 26th, 1845, at Pered.
 2. *Idem*, on August 18th, 1851, at Šala (Neuschloss).
 3. *Idem*, on August 18th, 1851, at Šala (Dudás).
 4. *Idem*, on August 18th, 1851, at Šala (Pintér).
 5. *Idem*, on April 24th, 1851, at Šala.
 6. *Idem*, on March 26th, 1877, at Kláštor pod Zniovom.
 7. *Idem*, on November 22nd, 1880, at Kláštor pod Zniovom.

B.—*At the oral proceedings :*

1. Report No. 4351 by the Royal Hungarian Aulic Chancellory dated July 6th, 1781, and presented to Emperor Joseph II¹.
2. Report presented in 1897 by the Royal Hungarian Government to the Second Congress on Catholic Autonomy at Budapest.
3. Extracts from legislative bills prepared in 1906 by M. Georges Lukács, Royal Hungarian Minister for Worship and Public Education, concerning :
 - (a) universities and university high schools,
 - (b) foundations,
 - (c) the Hungarian religious, educational and university funds.
4. Extract from bill No. 1426 of December 21st, 1917, submitted by Count Albert Apponyi, Royal Hungarian Minister for Worship and Public Education, to the Hungarian Parliament, concerning Catholic autonomy (in Hungary)².
5. Original documents relating to the entries in the Šala nad Váhom land-register³.

II.—DOCUMENTS FILED ON BEHALF OF THE HUNGARIAN GOVERNMENT.

A.—*In the written proceedings :*

- I/1. Covering letter accompanying the communication of the Agent of the Royal Hungarian Government of March 10th, 1932, addressed to the President of the Hungaro-Czechoslovak Mixed Arbitral Tribunal.
- I/2. Communication dated March 6th, 1932, addressed by the Royal Hungarian Director of Public Foundations to the Agent for the Royal Hungarian Government.
- I/3. Annex attached to the above communication, and containing Articles I and II of Ordinance No. 10,165 of the Royal Hungarian Minister for Worship and Public Education, of September 27th, 1867 (in the original Hungarian and a French translation).
- II. Intervention of the Royal Board of Public Foundations dated November 15th, 1932, and filed on November 25th, 1932.
- III. Deed of Peter Pázmány, Archbishop of Esztergom and Prince-Primate of Hungary, dated May 12th, 1635, founding the University (in the original Latin and a French translation).
- IV. Charter of Ferdinand II, Emperor of the Holy Roman Empire, dated October 18th, 1635, and conferring upon the University the privileges of a *Studium generale* (in the original Latin and a French translation).
- V. Deed concerning the bequests made to the University by two successors of Peter Pázmány, namely, George Lippay and Emeric Lósy, in the years 1635 and 1637 (in the original Latin and a French translation).
- VI. Deed of gift of Queen Maria Theresa, of the year 1769, conferring upon the University the estates of the Abbey of Dunaföldvár (in the original Latin and a French translation).
- VII. Deed of gift of Queen Maria Theresa, of the year 1775, conferring upon the University the landed property in issue (in the original Latin and a French translation).

¹ A copy of the original German text, with a French translation, taken from the work of M. Kálmán Melichar, entitled "Catholic autonomy in Hungary".

² This bill is mentioned in the parliamentary records of the Chamber of Deputies at Budapest for the year 1917.

³ Filed for temporary custody.

- VIII. Inaugural letters patent of Queen Maria Theresa, of the year 1780 (in the original Latin and a French translation).
- IX. Chapter of the *Ratio educationis*, of 1806, dealing with the question of the "Fund of the University" (in the original Latin and a French translation).
- X. Instruction issued by the Hungarian Vice-Regal Council in 1794 (in the original Latin and a French translation).
- XI. Deed of "*Nova donatio*" of the year 1804, of King Francis I, in respect of all the historic estates of the University (in the original Latin and a French translation).
- XII/1. Order for investiture and installation in possession, *Mandatum statutorium*, in execution of the "New Donation", of the year 1804 (in the original Latin and a French translation).
- XII/2. Deed of investiture and installation, in respect of one of the estates, in execution of the *Mandatum statutorium*, produced by way of example (in the original Latin and a French translation).
- XIII/1. Aulic Decree of January 29th, 1802, No. 832, of King Francis I (in the original German and a French translation).
- XIII/2. Rescript of the Chancellory of March 27th, 1802 (in the original Latin and a French translation).
- XIII/3. Report of the Hungarian Vice-Regal Council of May 10th, 1802 (in the original Latin and a French translation).
- XIV. Text of law XIX of 1848 (in the original Hungarian and a French translation).
- XV. Articles 20 and 24 of Count Thun's University Reform (in the original German and a French translation).
- XVI. Conclusions of the opinion given by Michel de Szepessy, Royal Director of the Legal Department of the Treasury, of August 18th, 1875 (in the original Hungarian and a French translation).
- XVII/1. Report dated October 27th, 1871, of Salomon Gajzágó, President of the Hungarian High Court of Accounts (in the original Hungarian and a French translation).
- XVII/2. Observations of the Royal Hungarian Minister for Worship and Public Education on the above-mentioned report (in the original Hungarian and a French translation).
- XVIII/1. Affidavit of the Royal Hungarian Minister of Justice of February 20th, 1932 (in the original Hungarian and a French translation).
- XVIII/2. Article 101 of law LIV of 1912, concerning the putting into force of the Hungarian Code of Civil Procedure (in the original Hungarian and a French translation).
- XIX. Report to Parliament by the Royal Hungarian Minister of Worship and Public Education, concerning the estates of the University, dated November 15th, 1869 (in the original Hungarian and a French translation).
- XX/1. Land-register No. 5559 of Budapest.
- XX/2. " " " 5558 " " "
- XX/3. " " " 527 " " "
- XX/4. " " " 499 " " "
- XX/5. " " " 5557 " " "
- XX/6. " " " 7206 " " "
- XX/7. " " " 5351 " " "
- XX/8. " " " 118 " " "
- XX/9. " " " 5352 " " "
- XXI/1. Extract from the records of the proceedings of the Austrian Peace Delegation at Saint-Germain-en-Laye.
- XXI/2. Reply of the Allied and Associated Powers to the observations of the Hungarian Delegation on the conditions of peace, respecting Article 250 of the Treaty of Trianon.
- XXII. Extract from the minutes of the public meeting of the Council of the League of Nations on September 19th, 1927.

- XXIII. Articles 6 and 8 of the Czechoslovak law No. 135, of February 19th, 1920 (in the official German and a French translation).
- XXIV/1 Exchange of notes between the Hungarian and Czechoslovak and 2. Governments concerning the handing over of the two Pálffy foundations (1931).
- XXV. Decision No. VI, 1893/1927/5, given on April 6th, 1927, by the Court of Appeal of Budapest, in its capacity as the appellate authority in questions concerning the commercial register (in the original Hungarian and a French translation).
- XXVI. Memorial of the Peter Pázmány University, of March 12th, 1932, presented to the Hungaro-Czechoslovak Mixed Arbitral Tribunal.
- XXVII. Memorial (on the merits) of the Peter Pázmány University, of June 15th, 1932, presented to the Hungaro-Czechoslovak Mixed Arbitral Tribunal.

Annexes :

- 1. Note of the Minister of Worship and Public Education of March 4th, 1907.
- 2. The State Budget for 1914/1915, page 24.
- 3. *Idem*, page 29.
- 4. Land-register No. 70 of Turóc-zandrásfalva.
- 5. " " " 200 " Znióvárálja.
- 6. " " " 202 " " "
- 7. " " " 203 " " "
- 8. Article 168 of the land-register regulations.
- 9. Land-register No. 1231 of Vágsellye.
- 10. " " " 50 " Valcsa.
- 11. Resolution adopted by the Institute of International Law on August 28th, 1897.
- 12. Judgment of September 7th, 1928, of the High Court of South-West Africa.
- 13. Article 56 of the Regulations concerning the laws and customs of war on land.
- XXVIII. Memorial of the Peter Pázmány University, of November 28th, 1932, presented to the Hungaro-Czechoslovak Mixed Arbitral Tribunal.

Annexes :

- 1. Contract of lease.
- 2. Contract of lease for buildings.
- 3. Note from the Director of Public Foundations to the tax-collection office at Galánta.
- 4. Law XXI of 1874.
- 5. " XX of 1881.
- 6. " XXV of 1897.
- 7. Explanation of the purpose of law XXI of 1874.
- 8. " " " " " " XX of 1881.
- 9. " " " " " " XXV of 1897.
- 10. Contract of purchase and sale.
- 11. Law XXIX of 1886.
- 12. Purchase contract for the Neczpál estate.
- 13. Royal approval of the purchase of the Neczpál estate.
- 14. Law XI of 1870 (Budget for 1870).
- 15. Proposal regarding the budget estimates for 1870.
- XXIX. Pleadings of the representatives of the Peter Pázmány University of Budapest, in its case against the State of Czechoslovakia, before the Hungaro-Czechoslovak Mixed Arbitral Tribunal.

Annexes :

1. Affidavit of the Royal Hungarian Minister of Justice.
2. Article 101 of law LIV of 1912.
3. Extract from the explanation of the purpose of the draft Hungarian Civil Code.
4. Provisions in the draft Hungarian Civil Code concerning corporations, with corresponding part of explanation of the purpose.
5. Extract from Ignatius Frank's *Principia juris civilis* (1827).
6. Extract from Girard's "Hand-book of Roman Law".
7. Law 74 of 1715.
8. Decision on principles Nos. 1 and 723 by the Royal Hungarian Curia.
9. Law 44 of 1741.
10. Extract from the Deed of Royal Gift of 1769.
11. Decree No. 10,292 of 1791 by the Vice-Regal Council.
12. *Nova donatio* of Francis I, 1804.
13. *Mandatum statutorium* of same year.
14. Extract from a document of investiture.
15. Extract from Theodore Pauler's "History of the University of Budapest".
16. Article 10 of law XIX of 1922.
17. Deed of foundation of the Kisfaludi-Lipthay scholarships.
18. Accounts of the *Cassa Universitatis* for 1781.
19. Royal Decree of 1793.
20. " " " 1802.
21. Address of the Vice-Regal Council No. 12,542 of 1802.
22. " " " " " 60,553 " 1865.
- XXX/1 Letter from the Royal Hungarian Director of Public Foundations,
and 3. dated August 5th, 1933, to the Rector of the Peter Pázmány
University of Budapest (in a French translation and the original
Hungarian).
- XXX/2 List of institutional funds, foundations and estates administered
and 4. or represented by the royal officials of the Public Foundations
attached to the Ministry of Worship and Public Education and
by the Royal Board of Foundations (in a French translation
and the original Hungarian).
- XXXI. Dissentient opinion of the national Czechoslovak Judge on the
Hungaro-Czechoslovak Mixed Arbitral Tribunal concerning Article
256 of the Treaty of Trianon, submitted in the case of the
"Hangya" (Ant) Co-operative Society *v.* the Czechoslovak State.
- XXXII/1. Note XXXVII of the Hungarian Delegation to the Peace Con-
ference, concerning the provisions of Article 256 of the Treaty
of Trianon.
- XXXII/2. Reply of the Allied and Associated Powers to the observations
of the Hungarian Delegation on the conditions of peace, concern-
ing Article 256 of the Treaty of Trianon.
- XXXIII. Judgment of the Hungaro-Czechoslovak Mixed Arbitral Tribunal,
dated July 29th, 1927, in the case of the "Hangya" Co-operative
Society *v.* the State of Czechoslovakia, No. 183.
- XXXIV/1 Note of the Royal Hungarian Minister of Worship and Public
and 2. Education, dated August 5th, 1933, to the Royal Hungarian
Minister of Foreign Affairs (in a French translation and the
original Hungarian).
- XXXV/1. Ordinance of Joseph II, dated January 28th, 1790, addressed
to the Royal Hungarian Vice-Regal Council (in original Latin
and a French translation).

- XXXV/2. Resolution of Joseph II, dated January 28th, 1790 (in Hungarian and a French translation).
- XXXVI. Law XXXII of 1790 (in original Latin and a French translation).
- XXXVII. Deed of gift drawn up by Queen Maria Theresa, dated March 25th, 1780, concerning the endowment of the Hungarian and Croat Educational Fund with the property of the Order of Jesuits (in original Latin and a French translation).
- XXXVIII. Order of investiture No. 817, dated February 1st, 1799, by which King Francis I ordered the Hungarian Educational Fund to be installed in possession of its estates under royal gift (in original Latin and a French translation).
- XXXIX/1 and 2. Report on the installation and investiture of the University of Buda in the estates of Sellye, property bequeathed under royal gift and at issue in the case (in original Latin and a French translation).
- XL/1 and 2. Report on the installation and investiture of the University of Buda in the estates of Znióvárálja, property bequeathed under royal gift and at issue in the case (in original Latin and a French translation).
- XLI. Law 74 of 1715 (in original Latin and a French translation).
- XLII. Extract from the *Tripartitum opus iuris consuetudinarii incltyti Regni Hungariae* ("Book in three parts on the common law of the Kingdom of Hungary"), by Stephen Werböczy, 1514 (in original Latin and a French translation).
- XLIII. Extract from a book compiled by Ignatius Frank, *Principia iuris civilis hungarici* ("Principles of Hungarian Civil Law"), 1829 (in original Latin and a French translation).
- XLIV. Law XII of 1548 (in original Latin and a French translation).
- XLV. Law XXXI of 1599 (in original Latin and a French translation).
- XLVI. Extract from Emeric Zlinszky's "Current Hungarian Private Law", 1902 (in original Hungarian and a French translation).
- XLVII/1. Extract from Charles Szladits' "Outlines of Hungarian Private Law", 1917 (in original Hungarian and a French translation).
- XLVII/2. Extract from Charles Szladits' "Law of Real Property", 1930 (in original Hungarian and a French translation).
- XLVIII. Law XV of 1848 (in original Hungarian and a French translation).
- XLIX. Ordinance of the Chancellory of the Royal Court of Hungary to the Vice-Regal Council, dated July 4th, 1793, No. 7080, concerning the administration of the property and income of political funds distinct from the Treasury funds, and the designation of the Religious and Educational Funds.
- L/1 and 2. Legislative provisions concerning the organization and functions of the Court of Accounts, law XVIII of 1870 and law XXIII of 1907 (in original Hungarian and a French translation).
- LI/1, 2 and 3. Law Gazettes of the French Republic, containing laws and decrees with force of law concerning the organization of the French universities.
- LII/1 and 2. Letter from Valentin Kolosváry, Professor at the Faculty of Law of the University of Budapest, dated July 11th, 1933, to the Rector of the Peter Pázmány University of Budapest, containing also an extract from his book: "Treatise on Private Law", 1904 (in a French translation and in original Hungarian).

- LII/3. Letter from Anthony Almási, Judge of the Supreme Court, dated July 12th, 1933, to the Rector of the Peter Pázmány University of Budapest (in original Hungarian and a French translation).
- LII/4. Extract from Anthony Almási's "Hungarian Private Law" (*Ungarisches Privatrecht*), Berlin and Leipzig, 1922 (in original German and a French translation).
- LII/5. Extract from Emeric Zlinszky's "Current Hungarian Private Law", 1902 (in original Hungarian and a French translation).
- LII/6. Letter from Arminius Fodor, former President of the Chamber of the Supreme Court, dated July 22nd, 1933, to the Rector of the Peter Pázmány University of Budapest (in original Hungarian and a French translation).
- LII/7. Extract from Arminius Fodor's "Hungarian Private Law", Budapest, 1897 (in original Hungarian and a French translation).
- LII/8. Extract from Désiré Márkus' "Hungarian Administrative Law" (*Ungarisches Verwaltungsrecht*), Tübingen, 1912 (in original German and a French translation).
- LII/9. Extract from Ignatius Kosutány's "Canon Law. Constitution and Administration of the Churches in Hungary", Kolozsvár, 1906 (in original Hungarian and a French translation).
- LII/10. Letter from Lewis Nékám, Professor of the Medical Faculty of the Peter Pázmány University of Budapest, dated July 27th, 1933, to the Rector of the Peter Pázmány University of Budapest (in original Hungarian and a French translation).
- LIII. Judgment of the Roumano-Hungarian Mixed Arbitral Tribunal, dated May 31st, 1933, in the case of Mme Étienne Tóth v. Agrarian Fund, No. 324.

B.—At the oral proceedings :

1. *Codex Juris canonici* (Vatican, MCMXXXI)¹.
2. Original of the "Deed of Foundation of the University, by Peter Pázmány" (May 12th, 1635)¹.
3. Original of "Charter of Ferdinand II, Emperor of the Holy Roman Empire, granting the University the privileges of a *Studium generale*" (October 18th, 1635)¹.
4. Original of the "Deed of Gift of Queen Maria Theresa, conferring upon the University the estates of the Abbey of Dunaföldvár (July 17th, 1769)¹.
5. Original of letter from the Emperor Rudolph disposing of the estates of St. Mary's Convent in the Comitatus of Turocz and of the Castle of Zúño, dated May 19th, 1586, signed Rudolphus, and sealed¹.
6. Original of "Deed of Gift of the Empress Maria Theresa, conferring upon the University the landed property at issue", dated February 13th, 1775, signed Maria Theresa, and sealed¹.
7. Original of the "Inaugural Letters Patent", dated March 25th, 1780, signed Maria Theresa, and sealed¹.
8. Original of the "Deed of New Gift (*nova donatio*) concerning all the historic estates of the University", dated January 20th, 1804, signed Franciscus, and sealed¹.
9. *Ratio Educationis Publicæ* (1 volume, Buda, 1808)¹.
10. Original of a "Contract of Lease", dated December 16th, 1914¹.
11. Original German text and a French translation of the Application made to the Hungaro-Czechoslovak Mixed Arbitral Tribunal by the Peter Pázmány University on December 24th, 1923.
12. Original Hungarian text and French and German translations of a judgment of December 30th, 1924, given, on appeal, by the Royal Tribunal of Budapest in the case of the "Peter Pázmány University v. the Royal Treasury".

¹ Filed for temporary custody.